Montgomery County District Court

Cause No. 2024-CV-0050

Brandon Allen, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	April 14, 2024
Plaintiff's counsel:	Jacob Holmes, Watson & Hines LLP

PARTIES

Plaintiff is Brandon Allen, an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits.

FACTS

On April 1, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Conroe, Texas, when a vehicle travelnig in the opposite direction crossed the center line and struck the front of Plaintiff's vehicle in a head-on collision. The impact occurred at low speed, but it was forceful enough to jerk Plaintiff's head and torso violently forward and back. Plaintiff reported the collision to the resopnding officer and to Defendant promptly. Plaintiff's policy was in force at the time of the loss, and Plaintiff has paid all premiums due. Following the collision, Plaintiff sought medical evaluation and was diagnosed with cervical and lumbar strain. Defendant has not paid the benefits owed under the policy in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

The collision and resulting injuries were proximately caused by the negligence of the at-fault driver, whose failure to keep a proper lookout, maintain control of the vehicle, and remain within the proper lane of travel violated the duties imposed by Texas law. Defendant owes Plaintiff contrcatual duties under the policy to pay covered benefits in good faith and to timely and fairly investigate and resolve the claim. Defendant breached those duties by failing to pay the amounts due, delaying its evaluation without reasonable basis, and failing to give Plaintiff a reasonable explanation for its decisions, in violation of the Teaxs Insurance Code and the Texas Deceptive Trade Practices Act.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff has suffered neck and back strain, pain and suffering, mental anguish, medical expenses past and future, lost wages, and loss of enojyment of life. Plaintiff seeks actual damages, statutory interest, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $210,000.00, together with such other and further relief, at law or in equity, to which Plaintiff may be justly entitled.